

9:00 AM 19CV44187 Motion to File First Amended Complaint 07/10/2019 06/22/2021; 06/23/2021 Trial Confirmation Conferen

Ptff/Pet: Alberts, Ole; Dyken, Silas

Atty: Foley, Kenneth M.

Def/Res: Hurst, John C.; JTN Holdings Llc; NTJ Management Llc

Atty: Pro Se

TENTATIVE RULING: Plaintiffs Ole Alberts and Silas Dyken request leave to file a First Amended Complaint (FAC) to add a cause of action for intentional fraud based on the same set of operative facts alleged in the original Complaint. No opposition appears in the Court's file.

Motions for leave to amend are directed to the discretion of the court. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading...." (Code of Civ. Proc. § 473, subd. (a)(1).) The court's discretion is typically exercised liberally to permit amendment to the pleadings. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939.) However, the Court has discretion to deny leave to amend when it would not be in accordance with the spirit of the law and the ends of justice. (Dunzweiler v. Sup. Ct. of Alameda Cty. (1968) 267 Cal.App.2d 569.)

The Court finds that the FAC is based on the same set of operative facts alleged in the Complaint. The FAC appears, from the Court's review, identical to the Complaint except for the addition of a cause of action for intentional fraud. (See FAC at 4:12-5:4.)

Based on the foregoing, the motion is GRANTED. Plaintiffs are given 10 days' leave to file the FAC in the form attached as Exhibit A to the present motion.

The Clerk will provide notice of this Ruling to the parties. No further formal Order is required.

9:00 AM 19CV44187 Motion for Continuance of Trial 07/10/2019 06/22/2021; 06/23/2021 Trial Confirmation Conferen

Ptff/Pet: Alberts, Ole; Dyken, Silas

Atty: Foley, Kenneth M.

Def/Res: Hurst, John C.; Jtn Holdings Llc; Ntj Management Llc

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TENTATIVE RULING: Plaintiffs Ole Alberts and Silas Dyken move for an order continuing the trial, currently set for June 23, 2021, to a new date to be determined by the Court, "if the granting of a Motion to Amend the Complaint so requires." (See Notice of Motion at 1:20-25.) No opposition appears in the Court's file. As the Court granted the Motion for Leave to File First Amended Complaint, Plaintiffs' Motion to Continue Trial is GRANTED. The Trial is continued to September 22, 2021, at 8:30 a.m. in Department 2, and remains scheduled as a one-day non-jury trial.

The Clerk will provide notice of this Ruling to the parties. No further formal Order is required.